

Court No. - 3

Case :- WRIT - C No. - 18315 of 2011

Petitioner :- Rajendra Kumar Gupta

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

The petitioner's contention is that he was not given an opportunity of hearing before passing the order under Section 126 (3) of the Electricity Act, 2003. At the same time he has submitted before this Court that on an earlier occasion an order was also passed by the Division Bench of this Court in writ petition no.54476 of 2010 on 29.9.2010. In such a situation this Court can send the matter to the appellate authority to proceed in accordance with law under the provisions of U.P. Electricity Act, 2005 to pass afresh assessment order in the case of the petitioner. Now the matter has been resolved under section 126 (3) of the Electricity Act, 2006. The petitioner has a right of appeal under Section 127 of the Electricity Act, 2005 from the order under Section 126(3) of the Electricity Act.

Learned counsel appearing for the petitioner has contended before this Court that in the case of Smt.Amrawati Devi Vs. Purvanchal Vidyut Vitran Nigam Limited & Another reported in 2009 (1)ADJ 430 (DB) this Court held that the provisional assessment notice in respect of defective meters is to be considered under Clause 5.6 (c) (iii) of U.P. Electricity Supply Code 2005. This order of the Division Bench was

ultimately reached upto the level of Supreme Court where the S.L.P. was dismissed. The petitioner placed reliance on paragraph 58 of the case reported in 2008(6)ADJ 660 (DB), Ashok Kumar & Others Vs. State of U.P. & Others, with regard to the unauthorized use of electricity and the petitioner has strongly contended before this Court that neither it is a case of tampering nor it is a case of unauthorized use of electricity. The respondent has changed his mind subsequently and instead of sending the meter to an independent testing body for the purpose of testing it stated that since the seal has been broken there is no sense in sending the meter for testing. It has further been submitted that this Bench in 2010 (6) ADJ 315(DB) has already held that if an alternative remedy is available a writ petition may lie.

According to us the submission of the petitioner is correct as far as the availability of the alternative remedy is concerned but it is dependent upon the circumstances of each case. In the instant case several factual disputes are involved. The matter is required to be considered under Section 127 of the Electricity Act. It will be a fruitful decision in connection with the grievance of the petitioner inclusive of the dispute regarding sending the meter to an independent body. It is upon the petitioner to raise all such objections as agitated here before the appellate authority. So far as the question of jurisdiction is concerned it can not be said that the appellate authority is lacking jurisdiction in the case.

Therefore taking into the totality of the matter we are of the

view that the writ petition can be disposed of with a direction upon the petitioner to prefer an appeal within a period of seven days from the date he obtains a certified copy of this order and if the petitioner prefers an appeal then in such case the appellant authority will hear out the matter upon giving fullest opportunity of hearing with regard to all facts and figures as agitated by the petitioner here and by passing a reasoned order thereon preferably within a period of one month thereafter. For the purpose of effective adjudication a copy of the writ petition alongwith its annexures can also be treated as part and parcel of the appeal. However, if the appeal is preferred as directed above, it will be decided on merits.

Accordingly the writ petition is disposed of, however, without imposing any cost.

Order Date :- 30.3.2011

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